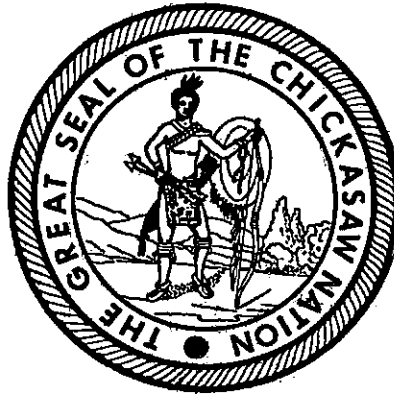




4th Legislature

Enactment No. 22

*To make a lawful act establishing a plan for the reapportionment of the Chickasaw Tribal Legislature, and for other purposes.*

IN THE CHICKASAW TRIBAL LEGISLATURE

January 15, 1988

Mr. Robert Stephens introduced the following bill; co-authors are Mr. Harold Hensley and Mr. Tim Colbert;

**A BILL**

To establish the legal authority and to set forth guidelines for the reapportionment of the Chickasaw Tribal Legislature.

*Be it enacted by the Tribal Legislature of the Chickasaw Nation assembled, that this Act may be cited as the "Reapportionment Act of 1988."*

SEC. 2. The Legislature finds that--

(1) Section 5 of Article VI of the Constitution of the Chickasaw Nation requires the legislature to "adopt a plan for reapportionment based on the number of registered voters of the four (4) districts, including those nonresidents who affiliate with each district.";

(2) It is the interpretation of the Chickasaw Tribal Court that such plan for the reapportionment of the tribal legislature has not taken place in accordance with the requirements of the Constitution and the Court has issued an order requiring that such be done;

(3) The responsibility for the reapportionment of the legislature rests with the legislature itself.

SEC. 3. For the purpose of this Act:

1. "Registered voter" or "voter" means those individuals who have met the necessary requirements and have completed an acceptable voter registration form and submitted such to the proper authority as established by the government of the Chickasaw Nation;

2. "District" shall mean any of those legislative districts of the Chickasaw Nation as defined in Article VI, Section 3 of the Constitution of the Chickasaw Nation as adopted by the Chickasaw people on August 27, 1983;

3. "Legislator" means those duly elected members of the Chickasaw Tribal Legislature who have been properly sworn and seated in the legislature;

4. "Seat" means any of those positions in the Chickasaw Tribal Legislature which are assigned to any of the four legislative districts according to this plan for reapportionment.

SEC. 4. Reapportionment of the Legislature shall be effected once every five years, beginning with the year 1988.

(a). Reapportionment shall be completed in each designated year no later than May 1;

SEC. 5. The formula for reapportionment shall be the same every year in which reapportionment is required.

(a). The basis for reapportionment shall be the number of registered voters on the official list of Chickasaw Nation registered voters as of the first day of March in each year in which reapportionment is required. The exact number of voters shall be provided to the legislature by the tribal voter registrar on the first Monday in March in each year in which reapportionment is required. Also included shall be the exact number of voters which have affiliated with each of the four legislative districts.

(b). The total number of registered voters shall be divided by the total number of seats in the Legislature (13) to arrive at the proper number of Chickasaw citizens which shall be represented by each tribal legislator.

(c). The number of voters affiliated with each legislative district shall then be divided by the number of voters which each legislator shall ideally represent, as obtained through part (b). above. The results will determine the number of legislative seats which will be assigned to each legislative district.

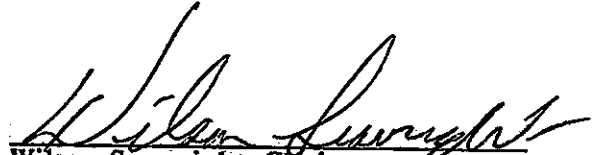
(d). Any district which shall have fewer registered voters affiliated therewith than is obtained in part (c). above, shall be assigned one legislator in accordance with Article VI, Section 4, of the Constitution of the Chickasaw Nation.

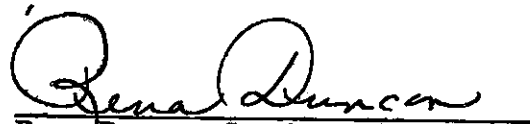
(e). Fractions obtained in determining the number of seats for each legislative district shall be rounded to the next highest whole number. In cases where the reapportionment formula calls for more legislative seats than are available, the numbers obtained in part (c). above shall be divided so that the fraction which is the lowest shall be rounded to the next smaller whole number.

SEC. 6. Should any legislative district, through reapportionment as determined by this Act, lose one or more of its seats in the legislature, the seats being lost will be those highest-numbered seats which are closest to being up for election during that particular year. In all cases, any new seats being added to a legislative district shall also be up for election during that year. Legislators whose seats are lost to their legislative district because of the terms of this Act, may seek election to any other seats up for election within their legislative district; however, once a seat has been removed from a legislative district because of reapportionment, that seat shall not be reassigned to that legislative district until a successive reapportionment period requires it.

SEC. 7. In cases where seats are removed from a legislative district under the terms of this Act, the seats in that district shall be renumbered, beginning with the highest number assigned to the seat(s) being lost, so that proper numerical order is retained in each district's seat numbers. In cases where seats are added to a legislative district, the next number shall be assigned to the new seat(s) so that proper numerical order is retained in that district's seat numbers.

Enactment No. 22, as herein contained, adopted in regular session of the Chickasaw Tribal Legislature meeting on January 15, 1988 at Ada, Oklahoma, by a vote of 13 For, 0 Against and 0 Abstentions.

  
Wilson Seawright, Chairperson  
Chickasaw Tribal Legislature

  
Rena Duncan, Secretary  
Chickasaw Tribal Legislature

Concur: Bill Anoatubby Date 1-18-88  
Bill Anoatubby, Governor  
The Chickasaw Nation